

HOUSE No. 3770

The Commonwealth of Massachusetts

PRESENTED BY:

John H. Rogers

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the Department of Highways to acquire a certain dam in the town of
Norwood.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>John H. Rogers</i>	<i>12th Norfolk</i>	<i>1/17/2025</i>
<i>Michael F. Rush</i>	<i>Norfolk and Suffolk</i>	<i>6/17/2025</i>

HOUSE No. 3770

By Representative Rogers of Norwood, a petition (accompanied by bill, House, No. 3770) of John H. Rogers for legislation to require the Department of Highways to acquire a certain portion of Brook Street and Willet Pond Dam in the town of Norwood by eminent domain. Transportation.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the Department of Highways to acquire a certain dam in the town of Norwood.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding any general or special law to the contrary, the department
2 of highways shall immediately take by eminent domain under chapter 79 of the General Laws
3 that portion of Brook street as laid out in Norfolk county in the town of Norwood which
4 comprises the public way which traverses Willett Pond, including the fee interest in and to the
5 earthen dam, spillway and attendant structures known as the Willet Pond Dam, and the
6 permanent easement interest in and to the abutments to the extent necessary to properly complete
7 construction, for all purposes consistent with the emergency rehabilitation and repair of same for
8 the safety of the public.

9 SECTION 2. The department of highways shall undertake and fund all necessary and
10 immediate repairs required to rehabilitate Brook street and dam on behalf of the county.

11 SECTION 3. Notwithstanding any general or special law to the contrary, no permit shall
12 be required from any state or local agency or body in order to effectuate the necessary and
13 immediate repairs contemplated by this act.

14 SECTION 4. Notwithstanding said chapter 79, no appraisal of damages shall be required
15 before any taking by eminent domain for the purposes of this act. Any appraisals required for the
16 purposes of this act shall be undertaken and funded by the department of highways.

17 SECTION 5. The bridge referred to and described within section 1 shall be named the
18 Honorable Gregory W. Sullivan Dam in honor of his distinguished service to the commonwealth
19 as a representative and inspector general.

20 SECTION 6. This act shall take effect upon its passage.